

Amendment No. 1 to SB0875

Briggs
Signature of Sponsor

AMEND Senate Bill No. 875

House Bill No. 780*

by deleting SECTION 2 and substituting instead:

SECTION 2. Tennessee Code Annotated, Section 67-6-103(a)(3), is amended
by adding the following as new subdivisions:

(G) Notwithstanding the right or ability of a county or municipality to take a special census at any time during the interim between the regular decennial federal census under this section or another law, the department of economic and community development shall revise and certify the population of each county and municipality, and the aggregate population of the state, prior to July 1 each year during the interim between the regular decennial federal census according to this subdivision (a)(3)(G) for purposes of ensuring equitable allocation and distribution of moneys under this subdivision (a)(3). The Boyd Center for Business and Economic Research at the University of Tennessee, through the Tennessee state data center, shall generate annual population estimates for each county and municipality and provide a report that includes such estimates to the department of economic and community development for review and certification. Prior to July 1, the department of economic and community development shall provide the revised, certified populations of each county and municipality to the department of revenue and the department of finance and administration. The allocation and distribution of moneys pursuant to this subdivision (a)(3) must be made according to the revised populations certified under this subdivision (a)(3)(G), except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of

the regular decennial federal census.

(H)

(i) Notwithstanding any other provision of this section, prior to the distributions provided for in this subdivision (a)(3), there is apportioned and distributed from the sales tax revenue collected pursuant to this chapter an amount not to exceed forty-two thousand dollars (\$42,000) annually to the University of Tennessee for use by the Boyd Center for Business and Economic Research. Such funds must be used exclusively to support the preparation, analysis, and reporting of annual population estimates required under subdivision (a)(3)(G) and certified by the department of economic and community development.

(ii) The department of economic and community development and the University of Tennessee shall review annually the amount distributed under this subdivision (a)(3)(H)(i), and, notwithstanding the limitations provided in subdivision (a)(3)(H)(i), may recommend an increase to the allocation, which must be approved by the commissioner of finance and administration. If the commissioner of finance and administration approves such an increase, the commissioner shall publish the new amount on the department's website.

(iii) Notwithstanding this subdivision (a)(3)(H) to the contrary, no portion of the revenue derived from the increase in the rate of sales and use tax allocated to educational purposes, pursuant to chapter 529, § 9 of the Public Acts of 1992, and no portion of the revenue derived from the increase in the rate of sales and use tax from six percent (6%) to seven percent (7%), pursuant to chapter 856, § 4 of the Public Acts of 2002, must be apportioned and distributed pursuant to this subdivision (a)(3)(H). All such revenue must continue to be allocated as provided in chapter 529, § 9 of the Public Acts of 1992, and chapter 856, § 4 of the Public Acts of 2002, respectively.

AND FURTHER AMEND by deleting subsection (b) in SECTION 4 and substituting instead:

(b) The Boyd Center for Business and Economic Research at the University of Tennessee, through the Tennessee state data center, shall generate annual population estimates for each county and municipality and provide a report that includes such estimates to the department of economic and community development for review and certification prior to June 1 each year.